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CMA Board Approval: 02/15/2025

Effective date: 03/01/2025

COOLFONT MOUNTAINSIDE ASSOCIATION
CMA GENERAL ENFORCEMENT POLICY RESOLUTION
POLICY RESOLUTION 2025-02

Authority

WHEREAS, CMA Articles of Incorporation provide that a function of CMA is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents;

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article IV § 2(c) and the Articles and Bylaws authorize suspension of the enjoyment rights of any Member for any period during which any assessment remains unpaid, and for any period not to exceed thirty (30) days for any infraction of its published rules and regulations; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article IX § 3 provides for the enforcement of these covenants and restrictions by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and that failure by the Association or any Owner to enforce any covenant or restriction therein contained shall in no event be deemed a waiver of the right to do so thereafter; and

WHEREAS, the CMA Bylaws, Article 5 § 5.2 requires that the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law, or with policies adopted by the Members at an Annual or Special Meeting, for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties and Facilities by (1) Members and the immediate family of Members, (2) Members' guests, and (3) Members' tenants. Such rules and regulations are to include procedures to ensure that any penalties shall not be imposed arbitrarily or unreasonably and shall provide a mechanism for appeals by Members. Members may delegate their rights of enjoyment in Common Properties and Facilities to the family members who reside upon The Properties or to any of their tenants and the rights and privileges of such persons are subject to suspension to the same extent as those of the Members; and

ERIN MELTON
123 ROBERT MILLS
BERKELEY SPRINGS WV 25411-4752

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WHEREAS, the CMA Bylaws, Article 5 § 5.3 provides that after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member; and

WHEREAS, the CMA Bylaws, Article 8 § 8.1(d) authorizes the Board to adopt and publish the rules and regulations, including fees, if any, governing the use of the Common Properties and facilities; and

WHEREAS, the Common Properties include the common recreational facilities and the water system, thereby vesting the Association with the authority to suspend use of the water system by a Member during any period during which such Member is delinquent in the payment of an assessment or usage fee levied by the Association, subject to the rules of the West Virginia Public Service Commission, and after notice and opportunity for hearing before the Board. Likewise, a Member's use of the common recreational facilities may be suspended for infraction of the published rules and regulations of the Association established pursuant to Article 5; and

WHEREAS, as a "Unit Owners' Association" governed by the provisions of West Virginia Code § 36B-1-204, *et seq.*, CMA is expressly vested with those powers set forth in § 36B-3-102 thereof. Under W Va. Code § 36B-3-103, the Board of Directors is vested with the general authority to act on behalf of the Association. Further, as a non-profit corporation, this Association is vested with the power and authority "[t]o impose or levy fines, penalties, dues, assessments, admission and transfer fees upon its members…" W. Va. Code § 31E-8-801 (15). Consistent with W. Va. Code § 36B-3-103, W. Va. Code § 31E-8-801, provides that the activities of the Association are to be conducted by this Board.

Purpose

WHEREAS, to promote the peaceful enjoyment of all CMA properties and common lands, the Board hereby establishes rules, enforcement policies, and procedures in accordance with the CMA Covenants and Restrictions, Bylaws, and rules and regulations so that it may fairly and consistently enforce the governing documents and ensure the public health and safety of all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying the premises of the CMA owners.

THEREFORE, this Enforcement Policy addresses violations of the CMA Declaration of Covenants and Restrictions (C&Rs), CMA Regulations Regarding the Use of Property (RRRUP), and CMA Design Guidelines and Building Regulations (DACC). Other published and recorded policy resolutions may provide enforcement provisions in their respective policies. This enforcement policy provides all members with information regarding the procedures for handling alleged violations of CMA's governing documents, rules and regulations, and policy resolutions; provides orderly and fair procedures for enforcing these documents; and provides for the CMA Board of Directors' (Board) response to violations.

Scope and Intent

This resolution is applicable to all homeowners, guests, tenants, lessees, occupants, invitees, and any other persons occupying the premises of the CMA homeowners or using the common properties, facilities, or amenities included thereby.

Enforcement

Nothing in this General Enforcement Policy Resolution is intended to limit, modify, or amend the recorded Declaration of Covenants and Restrictions of CMA and the amendments and modifications thereto. In the event of any conflicting language between the Declaration and this General Enforcement Policy, the terms and provisions of the Declaration will prevail. The Board of Directors may amend and further develop these guidelines from time to time.

These Rules shall remain in effect until otherwise rescinded, modified, or amended by a majority vote of the Board and recorded in the Morgan County, WV, Clerk's Office.

Violations of a public health and safety nature, such as violations of the Exterior Fire Policy (Policy Resolution 2023-01), the Domestic Pet Policy (Policy Resolution 2024-02), and the Trash Control Policy (Policy Resolution 2020-05) may require a more immediate response and resolution than the time periods noted in this General Enforcement Policy Resolution. Please refer to specific policy resolutions for more detailed information.

Upon receipt of information that a violation of the covenants, rules and regulations, policy resolutions, and/or DACC guidelines has occurred, the responsible owner will be notified of such violation by USPS Priority Mail and/or email to the last known address of the member or owner of record in the records of CMA. (C&Rs General Provisions § 2) It shall be the duty of each owner of a lot to provide the Association with a current address.

1. On receipt of a written complaint of an alleged violation, the Board and/or its designee(s) will investigate the violation within seven (7) calendar days of receipt of such complaint. If it is determined by such investigation a violation has occurred, the Board will take the following actions:
    a. Issue a "Notice of Violation Letter" by USPS Priority Mail and/or email, notifying the owner of an alleged violation, setting forth the details of the violation and requesting corrective action be taken within twenty (20) calendar days of the date of the email/postmark of the letter. The letter will set forth the rule violated, the possible fine(s) imposed, and give the owner the opportunity to appeal at a hearing with the Board. The Board will schedule a hearing within fifteen (15) calendar days of the owner's request for a hearing. Upon an owner's request for a hearing, any fines levied against the owner will be held in abeyance until the appeal is heard by the Board.
    b. If no corrective action has been taken or a request for hearing or other contact has not been received within the stated twenty (20) calendar days of the Notice of

Violation Letter, the Board will email/mail the owner a “Notice of Hearing” on the issue of whether to impose discipline in connection with the alleged violation. The hearing will take place at a meeting (virtual or in-person) of the Board at which a quorum of the Board may be present. The hearing will commence with a recital of the reasons the Board determined a violation occurred. The owner (virtual or in-person) may then provide evidence (in writing or orally) and present witnesses with direct knowledge of the alleged infraction. The Board, having performed its own investigation and presented its own evidence, is not required to identify the person(s) who brought the matter to the Board’s attention. Within seven (7) calendar days after the hearing, the Board will provide written notice to the owner of its decision. If the Board decides to impose a penalty it will be specified in the letter, and the date by which compliance is required.

c. If the owner fails to appear for a scheduled hearing, the Board will consider evidence presented in connection with the investigation, and will determine whether or not a violation occurred. If the Board determines a violation occurred, the Board will determine what disciplinary action, if any, to impose.

2. The following are not considered disciplinary actions and do not require a hearing before imposition:
   a. Notice of Violation letters
   b. Legal proceedings
   c. Entrance onto a property to remedy a health or safety emergency
   d. Towing of vehicles improperly parked in common areas or on roads or obstructing emergency vehicles
3. Violations that are continuous in nature may result in the imposition of periodic successive fines as described in the Schedule of Fines, Fees and Charges without further hearings by the Board. In each case where a periodic fine is assessed, the periodic fine will commence the day after the hearing in which it is determined to assess the fine for a continuous violation.
4. Owners are required to notify the CMA Board by mail or email upon the correction of any alleged violation so that the Board or its representative may inspect and verify the correction. Once the board verifies and acknowledges the correction was taken, only then is the violation considered closed.
5. The Board may, at any time it deems appropriate, file a civil action to obtain compliance with the governing documents, rules and regulations, and design guidelines: the Board need not issue a violation and/or fine an owner first. In a court action, the Board may seek injunctive relief and/or recovery of fines.
6. When violations are committed by tenants or guests of the owner, the owner is responsible for the violations. The notice of hearing will be sent to the owner, although the Board may send a copy of the notice to the tenant as well. For purposes of receipt of Notices, such notices will be mailed to the owner at the property address by USPS certified mail or priority mail and email to the last known address of the member or owner of record in the records of CMA.

7. A member who is in continuous violation is considered a “member not in good standing,” and shall not have the right to serve on, or seek election to the Board, Committees, or Task Forces as long as the violation continues.
8. The Board has an array of penalties that may be imposed, after notice and opportunity for hearing, including, but not limited to suspending the member’s right to use the common recreational facilities or water system (subject to the rules of the West Virginia Public Service Commission), as established in CMA Bylaws Article 5 Property Rights and Rights of Enjoyment of Common Property. The rights and privileges of members not in good standing shall be suspended as long as the violation continues.
9. The Board has an array of penalties that may be imposed, after notice and opportunity for hearing, including, but not limited to suspending the member’s right to vote. The rights and privileges of members not in good standing shall be suspended as long as the violation continues.
10. The Board may direct an attorney to file suit for fine(s) due that have not been paid, and for attorney’s fees should the member(s) in violation fail to pay the fine(s). The legal fees and expenses incurred and any unpaid fine(s) shall constitute a lien upon the property of the owner/member who is in violation. The enforcement procedures herein set forth are in addition to and do not supplant the remedies available at law or in equity to the Association or any member thereof for a violation of the restrictive covenants, including the right to seek immediate relief through court proceedings.

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2025-02 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on: February 15, 2025

Motion by: ____Iris Melton_____ Seconded by: ___Norm Rosenberg_____

VOTE:

	YES	NO	ABSTAIN	ABSENT
President, Steve Katz	____X___	_____	_____	_____
Vice President, Norm Rosenberg	____X___	_____	_____	_____
Treasurer, Dawne Holz	____X___	_____	_____	_____
Secretary, Valerie Creason	____X___	_____	_____	_____
Director, Dave Creason	____X___	_____	_____	_____
Director, Iris Melton	____X___	_____	_____	_____
Director, Jack Wennersten	_____	_____	_____	____X___

ATTEST:

Valerie Lm Creason _____ 02/15/2025 _____

Secretary Date

Resolution effective date: March 1, 2025